



POLICE DEPARTMENT

April 30, 2024

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2022-27009
Police Officer Amado Vargas	:	
Tax Registry No. 955621	:	
48 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Fredy Kaplan, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Michael Martinez, Esq.
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To:
HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Amado Vargas, on or about December 17, 2019, while assigned to the 48 Precinct and on duty in the vicinity of § 87(2)(b) Bronx County, intentionally used force and attempted to cause injury, in that he struck § 87(2)(b) face with his fist, without police necessity, causing § 87(2)(b) mouth to bleed and suffer the loss of a tooth.

P.G. 221-02, Page 2, Prohibitions 11 & 12

USE OF FORCE

Penal Law § 110/120.00

ATTEMPTED ASSAULT IN THE
THIRD DEGREE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 6, 2024. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The Civilian Complaint Review Board ("CCRB") called § 87(2)(b) § 87(2)(b) and § 87(2)(b) (who testified remotely) as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

This case involves an allegation that Respondent attempted to assault a student at § 87(2)(b) in the Bronx on December 17, 2019. On that day, the school's fire alarm had twice been pulled even though there was no fire, and school personnel were having difficulty with the students re-entering the building. The weather outside was cold and rainy, and some of the students, in their eagerness to get back inside, were bypassing the metal detector at the entrance. Police were summoned to the scene to provide assistance.

Respondent was one of the responding officers. It is undisputed that at approximately 1245 hours, he punched a student, § 87(2)(b) one time in the face, causing injury to

§ 87(2)(b) mouth. There is, however, disagreement as to the surrounding circumstances leading up to the punch.

§ 87(2)(b) who was 17 years old at the time of the incident, testified that students were pushing to get back inside the building, and some did not go through the metal detectors. Police were present in the school, and the officers and students were making comments to each other: some officers were telling students they could go to jail if they did not follow instructions, and students said things back to the officers, some of them cursing. Despite being directed by school personnel to clear the area and go inside the cafeteria, § 87(2)(b) was standing by a wall outside the cafeteria. He observed police officers chasing another student. (Tr. 27-28, 44-51)

According to § 87(2)(b) when the officers lost sight of the student, they came toward the area where § 87(2)(b) and others were standing. § 87(2)(b) testified that someone from behind pushed him toward one of the officers. § 87(2)(b) lost his balance, and one or both of his hands made contact with the officer's chest area;¹ he claimed that he did not grab or choke the officer, or strike him. § 87(2)(b) testified that he told the officer to "chill," but the officer, who looked angry, punched him one time in the face with a closed fist. The punch struck § 87(2)(b) near his left upper lip, dislodging a tooth, and he fell to the floor. Police officers jumped on top of him, and then brought § 87(2)(b) back to his feet. The officers told him he would be tased if he did not cooperate, and he was placed in handcuffs. (Tr. 29-34, 55-56, 59-63, 65-67)

§ 87(2)(b) testified that he was brought to § 87(2)(b) Hospital by the police, where he received stitches to close the laceration on his lip, his tooth was re-attached, and he was given painkillers and antibiotics. (See CCRB 3, Medical Records) The next day, § 87(2)(b) took photographs of his injured mouth. (CCRB Ex. 2) Police issued § 87(2)(b) a summons for

¹ The parties stipulated that during his interview with the CCRB on March 6, 2020, § 87(2)(b) had denied making any physical contact with the police officer. (Tr. 60-61)

disorderly conduct (which was later dismissed), and he was released from the hospital. § 87(2)(b) subsequently filed a lawsuit against the Department, which is pending. (Tr. 26, 35-39)

§ 87(2)(b) the dean of § 87(2)(b) testified that as students were pushing to re-enter the school after the fire alarms, one male student was placed in handcuffs by a school safety agent, and brought to the “parent coordinator’s” office. The area near the school entrance was chaotic, and a female student also was placed in handcuffs and brought to the office, causing other students to become visibly upset. School safety agents called for back-up, and 20-30 police officers arrived, who positioned themselves to guard the office where the handcuffed students were being detained. The students in the hallway were told to go inside the cafeteria, but many did not listen, including § 87(2)(b) who was approximately 30 feet from § 87(2)(b) standing against the wall by himself outside the cafeteria. (Tr. 71-73, 80-81, 84, 88, 91-93)

As § 87(2)(b) walked toward § 87(2)(b) his attention was drawn when two police officers grabbed § 87(2)(b) upper arms near his shoulders, even though § 87(2)(b) was just standing there. § 87(2)(b) testified that from approximately five-to-six feet away, he observed a third police officer punch § 87(2)(b) in the face with a closed fist. He also saw the police officer punch § 87(2)(b) a second time, but the second one was “not as severe.” § 87(2)(b) fell to the floor along with the officers, and was brought back to his feet in handcuffs. § 87(2)(b) saw two of § 87(2)(b) front teeth dangling, and his mouth was bleeding. § 87(2)(b) testified that prior to the punch, he did not see § 87(2)(b) place his hands on the police officer’s chest or neck area, and he did not hear any words exchanged before the punch. He also claimed that he did not see anyone push § 87(2)(b) into the officer prior to the punch, nor was there anyone within arm’s length of § 87(2)(b) that could have pushed him. However, when shown a copy of an “Occurrence Report” prepared within 24 hours of the incident, based on the information he provided, § 87(2)(b) after a long

pause, acknowledged that the report states, § 87(2)(b) was pushed into the line of police by the crowd behind him. § 87(2)(b) was taken to the ground, put under, and punched in the mouth.”

(Tr. 74-77, 91-94, 98-113)

§ 87(2)(b) who was the principal at § 87(2)(b) on the date of the incident, confirmed that the situation was chaotic inside the school. As students were trying to get back inside the building, some of them pushed the metal detector out of the way. One school safety agent was knocked down and injured as he was chasing a student who wrongfully brought a phone inside the school that another student had tossed to him. § 87(2)(b) testified that after at least two students were brought to the parent coordinator’s office in handcuffs, other students became angry and moved toward the front of the office. It appeared that the students were going after the officers, who were guarding the room and telling the students to back away. The students were screaming, cursing and spitting at the officers, and throwing objects at the officers as well. (Tr. 118-20, 127-45)

According to § 87(2)(b) § 87(2)(b) was one of the students in front of the office who was cursing and screaming at the officers. § 87(2)(b) testified that he observed § 87(2)(b) falling forward into a police officer, possibly from being pushed. As he did so, § 87(2)(b) hands made contact with the officer’s chest area; § 87(2)(b) did not see § 87(2)(b) grab the officer’s neck. The officer then punched § 87(2)(b) in the face with a closed fist, causing him to fall to the floor. Several officers surrounded § 87(2)(b) who was brought back to his feet, and the officer who punched him walked away from the area. (Tr. 120-25, 145-51)

Respondent acknowledged that he was the police officer who punched § 87(2)(b) he learned § 87(2)(b) name at the precinct afterward. He testified that he went to the school in response to a 10-85 call from a fellow officer who was screaming for assistance. When he

arrived the school was in disarray, with students running, screaming, cursing, and throwing things at the police officers. Respondent stood with the other 20-30 officers who were present, guarding the office door, with approximately 100 students in the area. The students ignored the commands to move back, and started coming toward the officers. People were bunched up together in what Respondent described as a “big melee.” (Tr. 157-63, 166, 172, 177)

According to Respondent, without warning § 87(2)(b) suddenly grabbed the front of Respondent’s throat with an open hand and squeezed; there had been no contact between the two of them before that. Respondent testified that he was startled, and believed he was in physical danger; he was concerned that he might lose consciousness and that his firearm could be taken from him. In response to the hand on his throat, Respondent immediately punched § 87(2)(b) one time in his mouth, and § 87(2)(b) released his grip. Respondent then moved back away from § 87(2)(b) in order to gather himself. Some other students grabbed Respondent and pulled him backward, injuring Respondent’s shoulder. He did not observe what happened to § 87(2)(b) on the floor, nor did he see § 87(2)(b) placed in handcuffs. Other than the one punch, Respondent did not use any additional force against § 87(2)(b) (Tr. 161-65, 171, 174-81)

Respondent testified that his Body-Worn-Camera fell during the incident with § 87(2)(b) and did not depict what transpired. That video does, however, capture Respondent telling another officer at the scene, “Some dude put his hand around my neck,” so this was not a claim fabricated by Respondent for trial. (Resp. Ex. A, at approximately 13:08:10) The school surveillance video (Resp. Ex. B, beginning at approximately 1245 hours) shows the general mayhem inside the school as described by the witnesses, including students getting escorted into the office, but it does not capture the encounter between Respondent and § 87(2)(b). In the injury paperwork he prepared after the incident (CCRB Exs. 4 & 5), Respondent described being pulled

by the shoulder, since that was the moment he was injured, and not when § 87(2)(b) placed his hand on his throat. He did, however, note that he was grabbed by the neck in his activity log (CCRB Ex. 9) and in the “Interaction” section of the TRI Report (CCRB Ex. 4). According to Respondent, the Department investigated his use of force in this matter, and exonerated Respondent of any wrongdoing. (Tr. 167-71, 182-90, 193-95, 198)

Respondent faces one specification, charging him with Attempted Assault in the Third Degree for punching § 87(2)(b) in the face. Inasmuch as the CCRB did not serve the charges and specifications within the relevant statute of limitations, it had to rely on the “criminal exception” to the statute in order to proceed with this matter. *See* N.Y. Civ. Serv. Law § 75(4).

As such, this is not a case where the prosecution need only prove that Respondent violated the Patrol Guide. The issue here is not whether Respondent used impermissible force when he punched § 87(2)(b) in the mouth. Rather, since the statute of limitations was not met, the CCRB has the burden of proving, by a preponderance of the credible evidence, each of the elements of Attempted Assault.

A person is guilty of an attempt to commit a crime when, with intent to commit a crime, he or she engages in conduct which tends to effect the commission of such crime. (N.Y. Penal Law § 110.00) The crime of Assault in the Third Degree is defined as intentionally causing physical injury to another person. (N.Y. Penal Law § 120.00(1)) As such, the burden is on the prosecution to prove that Respondent, with the intent to cause physical injury to Serrano, attempted to cause such injury.

It is undisputed that Respondent did punch § 87(2)(b) in the face during their encounter inside the school. Serrano testified regarding the punch, as did two eyewitnesses, and Respondent acknowledged it as well. There was some variation in the details of what preceded

the punch, which was not surprising since this was a crowded, tumultuous scene being viewed by individuals from different perspectives. Significantly, though, there was a consensus that § 87(2)(b) made physical contact with Respondent immediately before the punch. Respondent testified that § 87(2)(b) grabbed the front of his throat with an open hand and squeezed. Although none of the other witnesses testified to specifically seeing § 87(2)(b) grab Respondent's throat, both § 87(2)(b) and § 87(2)(b) testified that § 87(2)(b) hands made contact with Respondent's chest area. § 87(2)(b) testified he did not see any contact, but his occurrence report indicated that § 87(2)(b) was pushed into a line of police before he was punched.

As such, this was not a situation where Respondent approached § 87(2)(b) and gratuitously punched him for no reason. Rather, he punched § 87(2)(b) only after § 87(2)(b) came toward him and placed his hands on Respondent. The question, then, is whether under these circumstances, Respondent's actions rose to the level of Attempted Assault in the Third Degree.

The pivotal issue here is one of intent: in order for the CCRB to meet its burden, it must prove that Respondent's "conscious objective or purpose" was to cause physical injury to § 87(2)(b). Based on the credible evidence, I am not persuaded that Respondent acted with criminal intent. By all accounts, the situation inside the school was chaotic, with a large number of students massed into a small area as they re-entered the school following a false fire alarm. During the initial re-entry, several students dangerously bypassed the metal detector, which compromised the security of all those inside. Out of a concern for safety, school personnel actually sounded the alarm a second time, so that students would have to exit the building again and return through the scanner. Tensions between the students and police inside the building were high, and a school safety agent was injured during an encounter with a student. After at

least two students were escorted, in handcuffs, into an office, students responded by advancing toward the officers who were guarding the room, cursing and throwing things at them.

The credible evidence has established that § 87(2)(b) was part of this hostile group of students. Just as he had downplayed his interaction with Respondent at his CCRB interview, by falsely claiming there was no physical contact between him and Respondent prior to the punch, § 87(2)(b) again tried to minimize his actions at trial, testifying that he was just standing against a wall outside the cafeteria when Respondent approached him. I find § 87(2)(b) account on this point to be incredible, based on the contrary testimony of § 87(2)(b) the principal, who clarified that § 87(2)(b) was, in fact, one of the students cursing and screaming at the officers as he moved toward them. That is not to say that § 87(2)(b) was punched merely because he was part of this group. Rather, it provides relevant context to the circumstances leading up to the punch.

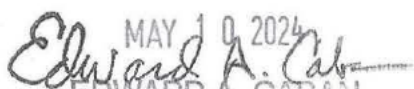
Respondent was detailed and consistent in his testimony, and I credit his account of what transpired between him and § 87(2)(b). When he felt § 87(2)(b) hand in the area of his neck, Respondent reacted by punching § 87(2)(b) one time, in order to remove the threat to his safety. As a result of the punch, he was freed from § 87(2)(b) grasp, and Respondent used no additional force against § 87(2)(b). Under these circumstances, the evidence did not establish that Respondent's intent was to injure § 87(2)(b). Rather, his intention was to stop § 87(2)(b) from harming him. As such, the prosecution did not prove each of the elements of Attempted Assault in the Third Degree as alleged, and I find Respondent Not Guilty.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

MAY 10 2024

EDWARD A. CABAN
POLICE COMMISSIONER



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ARVA RICE
INTERIM CHAIR

April 29, 2024

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Police Officer Amado Vargas
Disciplinary Case Nos. 2022-27009

Commissioner Caban:

The above-referenced case was tried on March 6, 2024, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Jeff S. Adler, dated April 4, 2024. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Amado Vargas was charged with the following:

1. Police Officer Amado Vargas, on or about December 17, 2019, while assigned to the 48 Precinct and on duty in the vicinity of § 87(2)(b) Bronx County, intentionally used force and attempted to cause injury, in that he struck § 87(2)(b) face with his fist, without police necessity, causing § 87(2)(b) mouth to bleed and suffer the loss of a tooth.

P.G. 221-02, Page 2, Paragraph 11 USE OF FORCE; 221-02, Page 2, Prohibition 12
PL §110/120.00 – Attempted Assault in the Third Degree

The Court found Respondent Vargas not guilty of Specifications One (1).

It is respectfully requested that you reject ADCT Adler's findings and find the Respondent guilty of Specifications One (1) and accept CCRB's recommended penalty of Ten (10) Suspension Days and Ten (10) Penalty Days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

The relevant evidence introduced at trial by CCRB were CCRB Exhibits 2, photos of § 87(2)(b) injuries; Exhibit 3, medical records for § 87(2)(b) Exhibit 4, Respondent's TRI report; Exhibit 5, Respondent's Line of Duty report; and Exhibit 9, Respondent's memo book. CCRB presented § 87(2)(b) who testified to said occurrences that transpired between Respondent and himself. CCRB also presented § 87(2)(b) Dean at § 87(2)(b) and § 87(2)(b) who was Principal at § 87(2)(b) the day of the incident, both who witnessed what occurred between § 87(2)(b) and the Respondent.

§ 87(2)(b) testified that on the day of the incident he was a 17-year old student in the 12th grade at § 87(2)(b) and his height was 5'6", and weight between 120-130 lbs. (Transcript 26). He stated that prior to being punched in the mouth by Respondent, he was standing by the school cafeteria wall when he saw police officers chasing a student, and upon losing sight of said student, these officers started to come towards the area he was standing in. (Transcript 28). At the point the officers were approaching said area, other students present were pushing each other, and he was pushed from behind towards the approaching officers. (Transcript 29). § 87(2)(b) testified that as he fell forwards, he had both of his hands up in front of him to keep his balance, and inadvertently, placed his hands on Respondent. (Transcript *Id.*). § 87(2)(b) testified that his hands were momentarily touching the Respondent's chest area. (Transcript 32). He stated that after immediately removing his hands from Respondent's chest area, he backed up away from Respondent, and as he was backing away, he told Respondent several times to "chill", but Respondent punched him in the face anyway. (Transcript 30, 31). § 87(2)(b) stated that Respondent was bigger and more muscular than him, and that after removing his hands from his chest area and prior to being punched in the face, Respondent looked angry. (Transcript 31, 32). § 87(2)(b) testified that he did not push, pull, or grab the Respondent, nor did he ever touch or have his hands on or around Respondent's neck. (Transcript, *supra* at 32). He testified that he never squeezed or choked Respondent's neck, nor restricted Respondent's breathing. (Transcript *Id.*). § 87(2)(b) stated that Respondent punched him in his upper lip area with a closed fist that caused § 87(2)(b) to fall to the ground. (Transcript 34). Upon getting up from the ground, § 87(2)(b) testified that he was holding his mouth which was bleeding profusely and had one of his teeth dangling from his mouth (Transcript *Id.*). § 87(2)(b) stated he was then hand-cuffed and then at some point brought to the hospital for his injuries. (Transcript 35). CCRB introduced Exhibit 2, which § 87(2)(b) identified as photos of the injuries to his mouth, lip and three teeth. (Transcript 37, 38).¹ § 87(2)(b) testified that upon being discharged from the hospital he received antibiotics and pain medication, as well as a summons for disorderly conduct. He stated the summons got dismissed. (Transcript 36).

On cross-examination, ADTC Adler pointedly asked § 87(2)(b) if it was "immediately" after his hands made contact with Respondent's chest that Respondent then punched him in his mouth to which § 87(2)(b) responded and explained that Respondent's punch was not immediate, as he first told Respondent several times to chill before he got punched. (Transcript 62).

§ 87(2)(b) testified that he observed § 87(2)(b) standing with his back against the wall of the cafeteria when two officers grabbed him by his arms and shoulders, holding either

¹ Exhibit 3, which was stipulated into evidence prior to any testimony, detailed the injuries received by § 87(2)(b) from Respondent's punch, the related concerns and follow-up treatment, as well as a list and description of the medications given to him before he was discharged from the hospital.

side of him, and then Respondent came over and punched § 87(2)(b) in the face. (Transcript 74). He stated that after the punch, the officers and § 87(2)(b) fell to the floor, and when he got up from the floor, § 87(2)(b) was in handcuffs and his two front teeth were dangling in his mouth. (Transcript, *Id.*). § 87(2)(b) testified that he also saw blood in § 87(2)(b) mouth area. (Transcript 75). He stated that he did not see § 87(2)(b) put his hands on any police officer's chest or neck, nor did he see him choke or constrict the breathing of any police officer. (Transcript *Id.*). He also stated that he did not see § 87(2)(b) pull or grab any police officers. (Transcript 76). When asked to describe Respondent's punch, § 87(2)(b) stated it was a very aggressive closed fist punch to § 87(2)(b) face. (Transcript *Id.*). § 87(2)(b) testified that he observed the entire incident between § 87(2)(b) and Respondent from approximately five to six feet away. (Transcript 77).

On cross-examination § 87(2)(b) testified that § 87(2)(b) followed instructions and was at the cafeteria, where he was supposed to be prior to the police officers grabbing him. (Transcript 92). He reiterated that he did not see what transpired between § 87(2)(b) and the Respondent prior to witnessing Respondent punch § 87(2)(b) in the face. (Transcript 98).

On redirect-examination, § 87(2)(b) testified that regardless of seeing or not seeing if § 87(2)(b) was pushed, he did see him get punched in the mouth by Respondent. (Transcript 113).

§ 87(2)(b) testified that he saw § 87(2)(b) in a group with other students and it appeared that someone either pushed him or he appeared to be falling forward, and when he was falling forward, he put his hands on Respondent who was right in front of him. After he put his hands on Respondent, he was pulled back by some officers at that time. Then Respondent punched § 87(2)(b) in the face. (Transcript 121). § 87(2)(b) described § 87(2)(b) falling forward as a fall where you are pushed and could not control his body, so his hands were up and landed on Respondent's chest area. (Transcript 124). Upon being punched in the face, § 87(2)(b) then fell to the ground along with several officers. (Transcript 121). § 87(2)(b) described Respondent's punch as a closed-fist straightforward punch, right into the face, in the mouth/nose area which force knocked § 87(2)(b) backwards. He stated that § 87(2)(b) hands were on Respondent's chest for just a few seconds. (Transcript 122). § 87(2)(b) stated that when § 87(2)(b) came up from the ground, he noticed that § 87(2)(b) lost one of his teeth and a second tooth was very loose as it was coming out. He also stated that he saw there was a lot of blood around § 87(2)(b) mouth area. (Transcript 123). § 87(2)(b) testified that he never saw § 87(2)(b) grab Respondent by the neck, choke him, or restrict his breathing, and never saw him pull or grab Respondent prior to being punched in the face. (Transcript 125).

On cross-examination, § 87(2)(b) testified that § 87(2)(b) hands were open, not in fists, when he made contact with Respondent's chest. (Transcript 147).

SUMMARY OF RESPONDENT'S TESTIMONY

On his direct testimony, Respondent testified that when he first saw § 87(2)(b) there were other students around him. (Transcript 163). Respondent stated that once he struck § 87(2)(b) with his fist, he retreated, left the scene of the incident, and did not know what happened to § 87(2)(b) at that time. (Transcript 164, 165). Respondent testified that despite § 87(2)(b) having a strong grip of his neck and choking him, there were no injuries to his neck or throat. (Transcript 166). Respondent stated that before he punched § 87(2)(b) face, there were two supervisors present at the scene, but did not inform either of them that he threw a punch at § 87(2)(b) as

required by the police guidelines. The only time he reported the incident to a supervisor was subsequently at the precinct after he learned of the injuries sustained by § 87(2)(b) as a result of his punch. (Transcript 166, 167). Respondent testified that he did not take any actions against § 87(2)(b) in terms of having him arrested for assaulting him despite feeling he was in eminent physical danger from § 87(2)(b) grabbing and choking his neck. (Transcript 164,167). Respondent stated that he was investigated by the Department for the use of force in this case and that he was exonerated. (Transcript 168).² Respondent then stated that he was equipped with his body-worn camera but failed to capture this specific incident with § 87(2)(b) (Transcript 170).

On cross-examination, Respondent testified that he did not recall if § 87(2)(b) grabbed his neck with one hand or both hands. (Transcript 174). He then stated that he could not recall if his breathing was restricted by § 87(2)(b) grip. (Transcript 175). Respondent testified that the first time he realized that § 87(2)(b) was injured because of Respondent's punch and in the hospital was later at the precinct. (Transcript 177). Respondent testified that prior to learning the name § 87(2)(b) as the individual he punched and caused injuries to that he did not describe to fellow officers at the scene any descriptions of the individual he claimed choked him, or that his breathing was being restricted from said choking. (Transcript 178). Respondent testified that after he punched § 87(2)(b) he retreated and did not see § 87(2)(b) fall to the floor or see his bloody mouth or teeth hanging from his mouth. (Transcript 179). Respondent stated he did not provide any information regarding being choked, or his breathing being constricted, or that his uniform was ripped in his TRI report (Transcript 184). Respondent also stated that he did not include any information about being choked or any hand being placed on his throat in his Line of Duty report. (Transcript 186).

On redirect-examination Respondent stated that his memo book mentioned that he was grabbed by the neck in an attempt to obstruct his breathing and the TRI number. (Transcript 194).

On recross-examination Respondent testified that he could not recall if his memo book entry regarding being grabbed by the neck in an attempt to obstruct his breathing was done before or after he became aware of § 87(2)(b) injuries. (Transcript 194). Respondent testified that his memo book entry makes no reference to him punching § 87(2)(b) back as result of his neck being grabbed and choked. (Transcript *Id.*). Respondent testified that there was no reference in his memo book entry pertaining to being grabbed, pulled, or choked by § 87(2)(b) or any other student. (Transcript 201).

**RESPONDENT IS GUILTY OF INTENTIONALLY USING FORCE AND
ATTEMPTING TO CAUSE INJURY AGAINST § 87(2)(b)
WITHOUT POLICE NECESSITY**

CCRB disagrees with the tribunal's finding that Respondent's use of force against § 87(2)(b) was immediate and not intended to injure him, but rather to stop him from harming Respondent. (Draft Decision 9). The evidence presented by CCRB clearly established that there was pause in time of at least ten to fifteen seconds between the time that § 87(2)(b) withdrew his hands from Respondent's chest area, and Respondent's closed fist punch to § 87(2)(b) face, thereby proving Respondent had the time to, and did, formulate his intent to not only retaliate against § 87(2)(b) but retaliate in a way that would cause injury to him by means of a closed-

² There was no evidence presented by Respondent, nor did the Court ask for any proof that Respondent was exonerated by the Department for his use of force against § 87(2)(b). The Court incorrectly credited Respondent's representation that he was exonerated without proof of such findings by the Department, (Draft Decision 7).

fisted punch with intentional impact. He did so because, as the evidence elicited, after § 87(2)(b) removed his hands from Respondent's chest, Respondent was angry, and upon seeing how angry and bigger in stature Respondent was in comparison to himself, § 87(2)(b) backed away from Respondent and told him several times to chill, to calm down. (Transcript 30, 31, 32). It was during this moment Respondent contemplated how he was going to respond to § 87(2)(b) and subsequently took an action in furtherance of his intent by closing his open hand and turning it into a fist, and with force and focus, punched § 87(2)(b) in the face, to hurt him.

Respondent did not punch § 87(2)(b) in the face because he felt he was in imminent danger from this 5'8", 125lbs, 17-year-old child, but rather because he was frustrated at the situation going on in the school at the time, frustrated at being disrespected by the students, and angry at § 87(2)(b) for putting his hands on him, and as such imposed a force only meant to cause injury. There were other, non-violent, and non-injurious methods Respondent could have resorted to in dealing with § 87(2)(b) especially since he took the time to contemplate his response to § 87(2)(b) but instead Respondent chose to use a criminal use of force in an attempt to, and in fact did cause injury to § 87(2)(b).

The evidence presented by CCRB also clearly established that § 87(2)(b) never had his hands anywhere on or near Respondent's neck or throat, and that he never choked Respondent or constricted his breathing.

As such, Respondent is guilty of intentionally using force and attempting to cause injury to § 87(2)(b) in that he struck § 87(2)(b) face with his fist, causing § 87(2)(b) mouth to bleed and suffer the loss of a tooth without police necessity.

CONCLUSION

For all the aforementioned reasons, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on all the charged Specification for Respondent. Based on the presented arguments above, Police Officer Amado Vargas is Guilty of Specifications One (1), and CCRB recommends the penalty of Ten (10) Suspension Days and Ten (10) Penalty Days.

Respectfully submitted,

Fredy H. Kaplan

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Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

Cc: Michael Martinez, Esq.